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CITY OF REDWOOD CITY
CITY CLERK'S OFFICE

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE E

BEGIN (Word Count: 496)

This measure was placed on the ballot by an initiative petition signed by the requisite number of Redwood City registered voters. It requires a majority for passage.

This measure would repeal Chapter 42 of the Municipal Code and replace it with an identically numbered chapter that would include the following changes:

Rent Control: Current law caps annual rent increases to between 5% and 10%, depending on the percentage change in local inflation, on specified rental units 15 years old or older. Current law also exempts single-family homes, condominiums, and housing built after February 1, 1995, from local rent control.

This initiative would impose rent control on specified units built before February 1, 1995, by capping the base rent rate to the amount paid on October 29, 2025 (for units occupied on that date) or to the initial rent rate (for units occupied after that date). Annual base rent rate increases would be capped at the rate equal to 60% of the percentage increase in local inflation and no more than 5%. Separately, both landlords and tenants could petition the City for an increase or decrease in rent under certain circumstances.

Evictions and Relocation Assistance: Under current law, after 12 months of tenancy in certain types of residential properties, landlords can evict tenants only for certain reasons, known as just cause. Just cause includes both evictions where the tenant is at fault (e.g., failure to pay rent) and evictions through no fault of the tenant (e.g., owner move-in). For no-fault evictions, tenants are entitled to relocation assistance equal to at least one month of the tenant's rent, while qualifying low-income and families with special circumstances are entitled to more. And in certain instances, after a no-fault eviction, a tenant has the right to return to the rental unit.

This initiative would extend just cause protections to single-family homes, ADUs, and deed-restricted affordable housing, and mobile homes. It would impose more restrictions against both at-fault and no-fault evictions, including additional notice requirements and specific rules for elderly and disabled tenants and for households with children or educators during the school year. It would extend the right to return to any tenant after a no-fault eviction if the rental unit is returned to the rental market by the landlord or a successor landlord. And for no-fault evictions, the initiative would require landlords to provide relocation assistance equal to 4 times the monthly U.S. Department of Housing and Urban Development fair market rent or $12,000, whichever is greater, while elderly and disabled tenants would receive an additional $6,000.

Miscellaneous Provisions: The initiative would also require landlords to submit tenant safety plans for City approval before performing repairs or renovations; regulate "buyout" offers that induce vacancy; prohibit landlords from taking specified actions in bad faith; and provide civil remedies, including treble damages, for violations.

NOT COUNTED

New City Responsibilities: The initiative would require the City to set annual rent increases; hear rent petitions, review tenant safety plans; issue regulations; and set and collect an annual fee on landlords to pay for administering the initiative.

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END

The above statement is an impartial analysis of Measure E. If you desire a copy of the measure, please call the City Clerk's Office at (650) 780-7220 and a copy will be mailed at no cost to you.

[redacted]

Veronica Ramirez, City Attorney
City of Redwood City